

6.	26CV1824	MARY WHITEHEAD VS. ROSEBUD HOLDINGS, LLC DBA WESTERN SLOPE HEALTH CENTER
MOTION FOR TRIAL PREFERENCE		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On July 22, 2026, Plaintiff, Mary Whitehead ("Plaintiff"), filed a Motion for Trial Preference. No opposition has been filed.

Plaintiff filed a Complaint against Defendants, Rosebud Holdings, LLC dba Western Slope Health Center and Bret Morschauser, individually (collectively "Defendants"), on June 30, 2026, alleging causes of action for 1) Statutory Elder Abuse/Neglect; 2) Negligence; and 3) Violation of Health and Safety Code § 1430.

On August 24, 2026, an Order was entered wherein Plaintiff and Defendant Rosebud Holdings, LLC dba Western Slope Health Center were ordered to adjudicate all causes of action, all claims, and all prayers for relief asserted in this action by Plaintiff in binding arbitration. Defendant Bret Morschauser was not included in the Order.

Legal Principles:

Code of Civil Procedure § 36 provides, in part:

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

Discussion:

Plaintiff requests the Court grant trial preference pursuant to Code of Civil Procedure § 36(a) and set the action for trial on a date not more than 120 days from the date of the order.

Plaintiff was born on September 10, 1932, and is currently 93 years old. Plaintiff has a substantial interest in the case, as the monies obtained from a judgment would go directly to her, including for in home care, as well as future health care to assist with her rehabilitation, and to compensate for her for the injuries she experienced.

The Declaration of Plaintiff's counsel provides that Plaintiff has several medical conditions which warrant the granting of preference including, but are not limited to, left ventricle failure, neoplasm of cerebral meninges, atrial fibrillation, stage 3 kidney disease,

Alzheimer's disease, atherosclerosis of aorta, MRSA, neoplasm of brain, and muscle wasting and atrophy. Plaintiff's counsel attests that Plaintiff will not survive to be alive for trial if this case is not granted preference.

The Court finds that Plaintiff's health is such that preference is necessary to prevent prejudicing her interest in the litigation. Plaintiff's request for trial preference as to Defendant Morschauser is granted.

TENTATIVE RULING #6:

PLAINTIFF'S REQUEST FOR TRIAL PREFERENCE AS TO DEFENDANT MORSCHAUSER IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.